

GRIFFIN FLOOR AMENDMENT #2
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2150
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 37-233, Arizona Revised Statutes, is amended
3 to read:

4 37-233. Sale of state lands; restriction on sale of timber
5 land; expense of sale; rules

6 A. On receiving an application, or on the commissioner's
7 initiative, the [state land] department, under the rules of the
8 department, may cause state lands to be sold if the sale of them is not
9 prohibited by law.

10 B. Land containing timber of a value which in the opinion of the
11 commissioner should be sold separately from the land shall not be subject
12 to sale until after the timber is sold.

13 C. When an application is filed with the department for selection
14 or sale of land under the laws of this state, and the department
15 determines that the benefit to be derived from the selection or sale is
16 less than the expense involved, the commissioner may accept from the
17 applicant an amount of money sufficient to pay the expense incidental to
18 the selection or sale. If the applicant fails to secure a lease after
19 selection of land, or fails to purchase land after bidding for it, the
20 successful lessee or purchaser shall reimburse the original applicant for
21 all funds so advanced.

22 [D. RULES ADOPTED PURSUANT TO SUBSECTION A OF THIS SECTION SHALL
23 ESTABLISH A PROCEDURE AND CRITERIA THAT THE COMMISSIONER MUST USE FOR
24 DETERMINING WHETHER TO INITIATE THE SALE OF STATE LANDS BY THE
25 COMMISSIONER'S OWN INITIATIVE.]>>

26

27 Sec. 2. Repeal

28 Section 41-3026.05, Arizona Revised Statutes, is repealed.

1 Sec. 3. Title 41, chapter 27, article 2, Arizona Revised Statutes,
2 is amended by adding section 41-3030.19, to read:

3 41-3030.19. State land department: termination July 1, 2030

4 A. THE STATE LAND DEPARTMENT TERMINATES ON JULY 1, 2030.

5 B. TITLE 37, CHAPTERS 1 AND 2 AND THIS SECTION ARE REPEALED ON
6 JANUARY 1, 2031.

7 Sec. 4. Purpose

8 Pursuant to section 41-2955, subsection B, Arizona Revised Statutes,
9 the legislature continues the state land department to have charge of and
10 control over all lands owned by this state, except lands under the
11 specific use and control of state institutions, and the resources in and
12 on those lands and to regulate the use of and access to those lands and
13 resources as prescribed by the enabling act, the Constitution of Arizona
14 and state law and to perform such other functions as prescribed by law.

15 Sec. 5. Retroactivity

16 Sections 1 and 2 of this act apply retroactively to from and after
17 July 1, 2026.

18 Enroll and engross to conform

19 Amend title to conform

GAIL GRIFFIN

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